

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #10	CCRB Case #: 201707094	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/17/2017 12:27 PM	Location of Incident: Inside of 240 Canal Street	18 Mo. SOL 2/17/2019	Precinct: 05		
Date/Time CV Reported Mon, 08/21/2017 9:43 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/28/2017 4:25 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. LT Tin Mai	00000	938913	005 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Max Cheung	19707	958401	005 PCT		
2. POM Darnell Dimanche	22893	962363	005 PCT		
3. POM Kwabena Fraser	23820	963034	005 PCT		
4. POM Giovanni Li	23357	952991	005 PCT		
Officer(s)	Allegation		Investigator Recommendation		
A . LT Tin Mai	Abuse: Lieutenant Tin Mai refused to provide her name to § 87(2)(b)		A . Unsubstantiated		

Case Summary

§ 87(2)(b) filed the following complaint with IAB on August 21, 2017, generating log number 17-32178. The complaint was received at the CCRB on August 28, 2017.

On August 17, 2017, at approximately 12:27 p.m., § 87(2)(b) and a male individual she refused to identify went to a gift shop located at 240 Canal Street in Manhattan. § 87(2)(b) decided to buy a pair of \$20 sneakers. She gave the unidentified male \$50 and told him to go to the register to pay for it. The unidentified male paid for the shoes and gave the cashier the \$50 and walked away. § 87(2)(b) realized the unidentified male did not give her the change remaining from the transaction. She returned to the store with the unidentified male and argued with the cashier, § 87(2)(b) over the money. § 87(2)(b) allegedly scratched his own hand and called the police. Lieutenant Tin Mai was one of the officers who responded to the location and spoke with § 87(2)(b) who stated that § 87(2)(b) assaulted him. § 87(2)(b) called Lt. Mai, who stood outside, and asked her for her name. Lt. Mai ignored § 87(2)(b)'s request for her name and continued talking to § 87(2)(b) (**Allegation A: Abuse of Authority, Unsubstantiated.**) § 87(2)(b) was arrested for assaulting § 87(2)(b) and she asked Police Officer Max Cheung at the stationhouse what the Lieutenant's name was and he replied that her name was "Mai."

There is no video footage associated with this case.

Findings and Recommendations

Allegation A – Abuse of Authority: Lieutenant Tin Mai refused to provide her name to

§ 87(2)(b) stated that she provided an identified male \$50 to buy a pair of \$20 sneakers inside of a gift shop. The unidentified male purchased the sneakers and walked down the block with § 87(2)(b). § 87(2)(b) realized that she never got change from the transaction. § 87(2)(b) and the unidentified male returned to the store and had a verbal dispute with the cashier, § 87(2)(b). § 87(2)(b) called the police and told them he was assaulted. After § 87(2)(b) called the police, the unidentified male left the location to go to an appointment. § 87(2)(b) remained in the store waiting for officers. PO Max Cheung, PO Darnell Dimanche, PO Kwabena Fraser and PO Giovanni Li responded to the location. PO Cheung spoke with § 87(2)(b). § 87(2)(b) requested a supervisor and PO Cheung called for a supervisor. Lt. Mai arrived on the scene and spoke with § 87(2)(b) outside of the store and did not listen to § 87(2)(b)'s side of the story. § 87(2)(b) yelled towards Lt. Mai, "Excuse me, what is your name?" § 87(2)(b) alleged that Lt. Mai heard the request, turned her back towards § 87(2)(b) and ignored her. § 87(2)(b) was then arrested for assaulting § 87(2)(b). § 87(2)(b) asked PO Cheung for Lt. Mai's name. PO Cheung provided § 87(2)(b) with Lt. Mai's name, along with the names of all the other officers that responded.

Lt. Mai stated that she responded to an assault in progress at 240 Canal Street in Manhattan along with PO Cheung. PO Cheung spoke to § 87(2)(b) and Lt. Mai spoke to the cashier, § 87(2)(b) who was allegedly assaulted. Lt. Mai stated that § 87(2)(b) never asked her for her name and she did not refuse to provide it to her. Lt. Mai did not recall if she interacted with § 87(2)(b) again after she was arrested.

PO Cheung did not hear § 87(2)(b) ask Lt. Mai for her name and did not witness Lt. Mai refuse to provide it. § 87(2)(b) did not complain that Lt. Mai did not provide her name but she did ask him for Lt. Mai's name at the stationhouse after she was arrested. PO Cheung provided § 87(2)(b) with Lt. Mai's name, which she wrote on a piece of paper.

PO Li, PO Dimanche and PO Fraser did not hear § 87(2)(b) ask Lt. Mai for her name and did not witness Lt. Mai refuse to provide her name. They did not recall if § 87(2)(b) was provided Lt. Mai's name by PO Cheung or any other officer.

§ 87(2)(b) stated that he was outside of the store and did not witness any verbal interaction between § 87(2)(b) and any officer. He stated he was not in place to hear § 87(2)(b) speak to Lt. Mai. He spoke to an Asian male officer while he was outside of the store.

Lt. Mai's memo book places her at the scene but does not have any notations that § 87(2)(b) asked her for her name or any other identifying information (Board Review 02).

§ 87(2)(g)
It is therefore recommended that **Allegation A be closed as Unsubstantiated.**

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed five previous complaints with the CCRB (Board Review 03).
 - § 87(2)(b)
- Lt. Mai has been a member of service for 12 years, has been the subject of four prior CCRB cases and has 9 allegations against her.
 - 200609710 had a physical force allegation that was exonerated, a gun pointed, a threat of arrest, and discourtesies were also unfounded.
 - 201300877 was closed as Uncooperative.
 - 201703167 had unsubstantiated allegations for threat of force.
 - § 87(2)(b)

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation due to § 87(2)(b)'s arrest.
- A Notice of Claims request was sent to the NYC Comptroller's office on January 29, 2018 and the results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date